

Prem Shanker Pandey v. State of U.P.

Allahabad High Court · Division Bench · 27 August 2012 · WRIT - C No. 35216 of 2012 · **Writ disposed; objections to provisional assessment to be decided; coercive recovery stayed.**

HEADNOTE

After alleged theft, a demand and recovery citation issued on a provisional assessment alone. The licensee stated that no final assessment had been passed and recovery was being withdrawn. The High Court disposed of the writ without deciding the bill: the consumer may file objections; the assessing officer shall decide them by a speaking order under the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005; coercive action stayed in the meantime.

FACTUAL SUMMARY

On 12 May 2011 the licensee's officers checked the petitioner's premises and allegedly detected theft of electricity. A provisional assessment dated 9 August 2011 was made and a demand notice dated 15 February 2012 issued. The petitioner filed no objections within the time allowed (upto 8 September 2011) and instead challenged the demand in writ. The licensee stated that, no final assessment having been passed, it was withdrawing the recovery citation, and that the petitioner could still object to the provisional assessment of Rs. 1,31,462.

HOLDING-UNITS

INTERPLAY · UP-2005

provisional-assessment-objections

HOLDING

On the licensee's statement that no final assessment had been passed and the recovery citation was being withdrawn, the writ challenging a theft-related demand was disposed of without a merits decision: the consumer may file objections to the provisional assessment; the assessing officer shall consider them after hearing and pass a reasoned order in accordance with the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005; and no coercive measures shall be taken until that decision or a specified outer date, whichever is earlier. ¶ 1-4

PRINCIPLE TAGS

relegate-to-statutory-remedy After alleged theft, a demand and recovery citation issued on a provisional assessment alone. The licensee stated that no final assessment had been passed and recovery was being withdrawn.. ¶ 1-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THEFT WAS COMMITTED AND WHAT ASSESSMENT IS PAYABLE

Merits of the provisional assessment and the demand left to the assessing officer on objections. ¶ 1-4